

[1 EDW. 8. & *London County* [Ch. xlviii.]
1 GEO. 6.] *Council (Money) Act, 1937.*



CHAPTER xlviii.

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April one thousand nine hundred and thirty-seven to the thirtieth day of September one thousand nine hundred and thirty-eight and for other purposes.

A.D. 1937.

[1st July 1937.]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council (Finance Consolidation) Act 1912 as amended or extended by subsequent Acts (hereinafter referred to as "the principal Act") and by Acts to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year (which periods are in the principal Act and in this Act referred to severally as a "financial period"):

2 & 3
Geo. 5. c. cv.

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September one thousand nine hundred and thirty-seven regulated by the London County Council (Money) Act 1936:

26 Geo. 5. &
1 Edw. 8.
c. ciii.

A.D. 1937.

—

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April one thousand nine hundred and thirty-seven to the thirtieth day of September one thousand nine hundred and thirty-eight (hereinafter referred to as "the financial period 1937-1938") should be regulated as by this Act provided :

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period 1937-1938 in the execution of the powers and duties respectively delegated to those committees and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council :

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1937-1938 are set out in Part I of the schedule to this Act :

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period 1937-1938 are set out in Part II of the said schedule :

And whereas the further sums which the Treasury may authorise the Council to expend on capital account or to lend during the financial period 1937-1938 are set out in Part III of the said schedule :

And whereas the sums specified in the said Parts I II and III of the schedule to this Act are to the extent set out in Part IV of the said schedule sums which the Council were by virtue of the said London County Council (Money) Act 1936 authorised to expend or lend but have not before the first day of April one thousand nine hundred and thirty-seven expended or lent :

And whereas it is expedient that the principal Act should be amended in certain respects as by this Act provided and that such further provisions with reference to the expenditure of money on capital account and the lending of money by the Council as are contained in this Act should be enacted :

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And whereas the objects of this Act cannot be attained without the authority of Parliament : A.D. 1937.
—

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited for all purposes as the London County Council (Money) Act 1937 and shall be read and have effect as one with the principal Act. Short title and construction.

2. In and for the purposes of this Act and except where the context otherwise requires— Interpretation.

“ the Council ” means the London County Council ;

“ the principal Act ” means the London County Council (Finance Consolidation) Act 1912 as amended or extended by any subsequent Act ;

“ the financial year ” means the period from the first day of April one thousand nine hundred and thirty-seven to the thirty-first day of March one thousand nine hundred and thirty-eight both dates inclusive ;

“ the following six months ” means the period from the first day of April one thousand nine hundred and thirty-eight to the thirtieth day of September one thousand nine hundred and thirty-eight both dates inclusive ;

“ the financial period 1937–1938 ” means the financial year and the following six months ;

“ the schedule ” means the schedule to this Act ;

“ financial period ” means any period from the first day of April in any year to the thirtieth day of September in the next following year ; and

“ annual money Act ” means any Act obtained by the Council for regulating their expenditure on capital account or the lending of money by them during any financial period.

A.D. 1937.
—
Expendi-
ture on
capital
account
during
financial
period
1937-1938.

3.—(1) The purposes for which during the financial period 1937-1938 the Council may under the powers of section 4 (Power to expend money on capital account) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall as regards the financial year and the following six months respectively be sums which except as by this Act otherwise provided shall not exceed those mentioned in the sixth and seventh columns respectively of Part I of the schedule in relation to the said purposes respectively.

Amount
authorised
to be lent
to and
borrowed
by local
authorities
and others
during
financial
period
1937-1938.

4. The sums which during the financial period 1937-1938 the Council may lend under the powers of section 7 (Power to lend money to local authorities and others) of the principal Act and which the bodies and persons mentioned in that section are authorised to borrow from the Council shall as regards the financial year and the following six months respectively be sums which except as by this Act otherwise provided shall not exceed those specified in the second and third columns respectively of Part II of the schedule in relation to such bodies and persons respectively.

Amount of
further ex-
penditure
and loans
which Trea-
sury may
authorise in
case of in-
sufficiency.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of the section of this Act of which the marginal note is "Powers as to expenditure or loans in event of insufficiency of specified amounts" to expend on capital account or to lend during the financial period 1937-1938 in case any of the amounts specified in Part I or Part II of the schedule are found to be insufficient shall as regards the financial year and the following six months respectively be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the schedule.

Periods for
repayment
of loans to
certain
bodies.

6. Any money lent by the Council to governors of educational institutions or to managers of special and approved schools or to committees of school treatment centres in pursuance of powers conferred by the principal Act and this Act shall be repaid to the

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Council within such period or periods not exceeding A.D. 1937.
sixty years from the date or respective dates of lending
the same as the Council with the approval of the Treasury
may determine.

7. Subsection (1) of section 7 (Power to lend money to local authorities and others) of the principal Act shall be read and have effect as if the following proviso were inserted in that subsection at the end thereof (that is to say):—

“ Provided that the Council may in the following six months comprised in any financial period lend to bodies and persons of any class specified in the annual money Act relating to that period (in addition to any other moneys which they are by that Act authorised to lend in such following six months) any moneys which they are by that Act authorised to lend but have not lent to bodies and persons of that class in the financial year comprised in that period.”

8.—(1) In and for the purposes of this section—

“ particular period ” means the financial year or the following six months (as the case may be) comprised in the financial period to which any annual money Act relates;

“ authorised purpose ” means the expenditure of money on capital account for any purpose mentioned in the schedule to any annual money Act or the lending of money to bodies and persons of any class specified in that schedule; and

“ specified ” means specified in the schedule to any annual money Act.

Powers as to expenditure or loans in event of insufficiency of specified amounts.

(2) Where in a particular period the Council do not require to expend or lend for any authorised purpose the whole of the amount specified in relation to that purpose they may with the approval of the Treasury expend or lend for any other authorised purpose (in addition to the amount specified in relation to such other authorised purpose) an amount not exceeding the sum by which the amount specified in relation to the first-mentioned authorised purpose exceeds the amount

A.D. 1937. — required for expenditure or lending for that purpose in that particular period.

(3) In addition and without prejudice to the powers conferred by subsection (2) of this section if by reason of unforeseen circumstances the amounts authorised by an annual money Act to be expended or lent respectively in a particular period for any authorised purpose set forth in that Act are found to be insufficient the Council may apply to the Treasury for authority and the Treasury may authorise the Council to expend or lend (as the case may be) for any such purpose such further sums as may be proved to their satisfaction to be necessary or desirable not exceeding in the aggregate in that particular period such amount as may be specified in that behalf and the Treasury in giving such authority shall prescribe the periods within which provision shall be made for the repayment of any money expended under any such authority. Provided that the lending of money by the Council under any such authority shall be subject to the provisions of subsection (4) of section 7 of the principal Act and that any money so lent shall be repaid to them in accordance with subsections (2) and (3) of that section.

(4) The tables required by the principal Act to accompany every Bill for an annual money Act shall contain particulars of any authorisation given by the Treasury under subsection (2) or subsection (3) of this section and of the extent to which the Council have expended or lent money pursuant to such authorisation.

(5) The sums which under the authority of the proviso to subsection (1) of section 4 of the principal Act or of the proviso which by the section of this Act of which the marginal note is "Amendment of section 7 of principal Act" is added to subsection (1) of section 7 of the principal Act the Council may expend or lend (as the case may be) for any authorised purpose in the following six months referred to in the said provisos respectively shall be ascertained after taking into account the extent (if any) to which the sum authorised to be expended or lent by the Council for that purpose in the financial year referred to in the said provisos respectively has been expended or lent for any other purpose under the authority of subsection (2) of this section.

(6) Section 5 (Power to raise further money in case of insufficiency) of the principal Act is hereby repealed.

The SCHEDULE referred to in the foregoing Act.

[1 EDW. 8. &
1 GEO. 6.]

London County
Council (Money) Act, 1937.

[Ch. xlviii.]

PART I.

ESTIMATED REQUIREMENTS FROM 1ST APRIL 1937 TO 30TH SEPTEMBER 1938 FOR CAPITAL EXPENDITURE.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1938. (6)	Estimated Requirement for Six Months ending 30th September 1938. (7)
		Total Parlia- mentary Estimate. (3)	Expendi- ture to 31st March 1937 (Approx- imate). (4)	Revised Estimate where necessary. (5)		
1. Metropolis Management Act 1855 and various Acts authorising improvements and works.	Construction widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London and contributions towards cost of such improvements and contributions to cost of local improvements and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	£ *	£ —	£ —	£ 781,915	£ 160,000
2. Metropolitan Fire Brigade Act 1865 and various Acts amending or extending the same.	Provision of stations and execution of other works for the London Fire Brigade.	*	—	—	140,330	14,265
	Carried forward	.	.	.	922,245	174,265

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

A.D. 1937.

A.D. 1937.

THE SCHEDULE—continued.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1938. (6)	Estimated Requirement for Six Months ending 30th September 1938. (7)
		Total Parlia- mentary Estimate. (3)	Expendi- ture to 31st March 1937 (Approx- imate). (4)	Revised Estimate where necessary. (5)		
	Brought forward	£	£	£	£	£
3. Metropolis Management (Thames River Preven- tion of Floods) Amend- ment Act 1879 and various Acts relating to prevention of flooding from the river Thames.	Execution of flood works	*	—	—	922,245	174,265
4. Metropolitan Board of Works (Various Powers) Act 1885.	Woolwich Ferry—Miscellaneous works	*	—	—	10,000	490
5. Thames Tunnel (Blackwall) Acts 1887 and 1888.	Blackwall Tunnel—Miscellaneous works	*	—	—	560	—
6. Local Government Act 1888	Acquisition of property and improvement of accommodation and equipment for supplies department.	*	—	—	25,675	—
7. Local Government Act 1888 and sundry Acts relating to bridges.	(a) Reconstruction of Chelsea Bridge (b) Reconstruction of Wandsworth Bridge (c) Demolition of Waterloo Bridge and the erection of a new bridge.	* * *	— — —	— — —	500	—
					26,180	4,000
					48,990	24,000
					255,000	180,000

[1 EDW. 8. &
1 GEO. 6.]

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8. Local Government Act 1888.	Acquisition of land and provision of additional office accommodation.	*	—	—	—	255,000	112,700
9. Lunacy and Mental Treatment Acts 1890 to 1930.	Acquisition of property and provision of mental hospitals and other purposes in connection with the care of persons of unsound mind.	*	—	—	—	180,000	78,905
10. Thames Tunnel (Rotherhithe and Ratcliff) Act 1900.	Rotherhithe Tunnel—Miscellaneous works	*	—	—	—	8,150	—
11. Open Spaces Act 1906 and various Acts relating to parks open spaces gardens public walks and pleasure grounds.	Acquisition laying-out and improvement of parks open spaces gardens public walks and pleasure grounds contributions to cost thereof and other purposes connected therewith.	*	—	—	—	708,710	224,000
12. Mental Deficiency Acts 1913 to 1927.	Acquisition of property provision of buildings for accommodation of mental defectives and provision of equipment.	*	—	—	—	13,500	—
13. London County Council (Tramways and Improvements) Act 1920.	Acquisition of property and execution of works in connection with widenings of Cable Street and Brook Street.	†595,500	305,104	—	—	6,665	11,700
14. Education Act 1921 and Acts amending or extending the same.	Acquisition of property provision and equipment of schools and other purposes.	*	—	—	—	1,015,960	593,600
15. London County Council (General Powers) Act 1925.	Acquisition of property for widening of the Strand between George Court and Villiers Street.	—	—	—	—	33,335	—
	Carried forward	.	.	.	.	3,510,470	1,403,660

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other street improvements authorised by the same Act.

A.D. 1937.

A.D. 1937.

THE SCHEDULE—continued.

Acts for the Purposes of which Money may be expended.	Purposes of Expenditure.	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.				Estimated Requirement for Year ending 31st March 1938.	Estimated Requirement for Six Months ending 30th September 1938.
		Total Parliamen- tary Estimate.	Expendi- ture to 31st March 1937 (Approx- imate).	Revised Estimate where necessary.	(3)		
		£	£	£	£	£	£
	Brought forward	-	-	-	-	-	1,403,660
16. Royal Victoria and other Docks Approaches (Im- provement) Act 1929.	Contributions towards cost of acquisition of property improvements and works &c.	425,000	276,250	-	-	6,000	-
17. Poor Law Act 1930 .	Acquisition of property additions and altera- tions to residential schools and children's homes and mental and public assistance institutions and local offices.	*	-	-	-	266,500	104,265
18. Poor Law Act 1930 and Public Health (London) Act 1936.	Acquisition of property additions and altera- tions to hospitals and pathological labora- tories and ambulance stations.	*	-	-	-	650,000	278,745
19. London County Council (Money) Act 1930.	Repayment of local bonds for housing	-	-	-	-	1,243,545	-
20. London County Council (Vauxhall Cross Improve- ment) Act 1931.	Acquisition of property and execution of works in connection with street improve- ments at Vauxhall Cross.	617,000	125,644	336,000	-	53,000	16,000
21. Town and Country Planning Act 1932.	Acquisition of property compensation &c.	*	-	-	-	10,000	5,000

22. Children and Young Persons Act 1933.	Provision and equipment of approved schools and remand home.	*	—	—	74,040	—
23. London County Council (General Powers) Act 1935.	Acquisition of property for the extension of County Hall and on the south bank of River Thames.	—	—	—	71,000	50,000
24. Housing Act 1936	Carrying out schemes acquisition of property erection of dwellings advances to persons or bodies of persons and other purposes.	*	—	—	†7,880,000	†3,625,000
25. London and Middlesex (Improvements &c.) Act 1936.	Acquisition of property and execution of works in connection with extension of Cromwell Road.	1,620,000	17,478	—	68,000	46,000
26. Public Health (London) Act 1936 and various Acts relating to main drainage.	Provision of pumping stations outfalls machinery sewers sewage treatment plant and other purposes.	*	—	—	340,000	242,640
27. Any other Act	To provide for possible expenditure for purposes authorised by Parliament but not included in the foregoing estimates for which it may be desirable that the Council should have spending power.	—	—	—	50,000	25,000
					14,222,555	5,796,310

Carried forward - - - - £20,018,865

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.
† In addition to the methods of raising money authorised by the principal Act the Council are empowered by virtue of section 122 of the Housing Act 1936 with the consent of the Minister of Health to raise by the issue of bonds any sums which they have power to borrow for the purposes of that Act. The money to be raised for expenditure on capital account for housing purposes during the financial period 1937-1938 will however not exceed a total of £11,505,000.

A.D. 1937.

THE SCHEDULE—continued.

Brought forward - £20,018,865

PART II.

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS.

Bodies and Persons to whom Money may be lent.	During Year ending 31st March 1938.	During Six Months ending 30th September 1938.
(1)	(2)	(3)
28. Metropolitan borough councils - -	£ 1,000,000	£ 500,000
29. Governors of educational institutions managers of special and approved schools and committees of school treatment centres - - - -	5,000	1,000
30. Sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923 - - - - -	45,000	25,000
Total - - - - -	†1,050,000	†526,000
		£1,576,000

† The provision for advances to persons or bodies of persons under the Housing Act 1936 is included under item 24 of this schedule.

PART III.

EXPENDITURE WHICH MAY BE AUTHORISED BY THE
TREASURY BEYOND AMOUNTS SPECIFIED IN
PARTS I AND II OF THIS SCHEDULE.

Purposes.	During Year ending 31st March 1938.	During Six Months ending 30th September 1938.
(1)	(2)	(3)
31. General enlargement of spending and lending power to provide under Treasury sanction for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in the foregoing estimates - - -	£ 1,500,000	£ 750,000
		£2,250,000
	Carried forward - - -	£23,844,865

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1 GEO. 6.] *Council (Money) Act, 1937.*

THE SCHEDULE—*continued.*

A.D. 1937.

Brought forward - £23,844,865

PART IV.

AMOUNTS INCLUDED IN THE FOREGOING PARTS OF THIS SCHEDULE WHICH WERE AUTHORISED BY VIRTUE OF THE LONDON COUNTY COUNCIL (MONEY) ACT 1936 TO BE EXPENDED OR LENT BUT NOT HAVING BEEN EXPENDED OR LENT BEFORE 1ST APRIL 1937 ARE INCLUDED AGAIN IN THIS ACT.

IN ORDER TO ASCERTAIN THE NET AGGREGATE NEW POWERS OF EXPENDING OR LENDING MONEY CONFERRED BY VIRTUE OF THIS ACT IT IS NECESSARY TO DEDUCT THE FOLLOWING SUMS FROM THE SUMS REFERRED TO IN THE FOREGOING PARTS OF THIS SCHEDULE.

Reference to Number of Item in a foregoing Part of this Schedule.	Purposes of Expenditure or Loan.	Amount (Approximate).
1	Metropolis Management Act 1855 and various Acts authorising improvements and works - - -	£ 941,915
2	Metropolitan Fire Brigade Act 1865 and various Acts amending or extending the same - - -	140,050
3	Metropolis Management (Thames River Prevention of Floods) Amendment Act 1879 &c. - - -	440
5	Thames Tunnel (Blackwall) Acts 1887 and 1888 -	12,300
6	Local Government Act 1888 - - - - -	180
7	Local Government Act 1888 and sundry Acts relating to bridges - - - - -	221,720
8	Local Government Act 1888 - - - - -	154,000
9	Lunacy and Mental Treatment Acts 1890 to 1930 -	189,800
11	Open Spaces Act 1906 and various Acts relating to parks &c. - - - - -	932,710
12	Mental Deficiency Acts 1913 to 1927 - - - -	5,000
13	London County Council (Tramways and Improvements) Act 1920 - - - - -	18,365
14	Education Act 1921 &c. - - - - -	1,230,140
15	London County Council (General Powers) Act 1925	33,335
16	Royal Victoria and other Docks Approaches (Improvement) Act 1929 - - - - -	6,000
17	Poor Law Act 1930 - - - - -	323,140
18	Poor Law Act 1930 and Public Health (London) Act 1936 - - - - -	413,025
19	London County Council (Money) Act 1930 - - -	1,243,545
20	London County Council (Vauxhall Cross Improvement) Act 1931 - - - - -	57,680
21	Town and Country Planning Act 1932 - - - -	15,000
22	Children and Young Persons Act 1933 - - - -	500
	Carried forward - - - - -	5,938,845 £23,844,865

A.D. 1937.

THE SCHEDULE—*continued*.

Brought forward £23,844,865

Reference to Number of Item in aforegoing Part of this Schedule.	Purposes of Expenditure or Loan.	Amount (Approximate).
	Brought forward - - -	£ 5,938,845
23	London County Council (General Powers) Act, 1935	121,000
24	Housing Act 1936 - - - - -	8,515,000
26	Public Health (London) Act 1936 and various Acts relating to main drainage - - - - -	217,950
27	Any other Act - - - - -	75,000
28	Loans to metropolitan borough councils - - -	1,149,000
29	Loans to managers of special and approved schools &c. - - - - -	6,000
30	Loans to sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923 - - - - -	70,000
31	General enlargement of spending and lending powers under Treasury sanction - - - - -	2,248,350
		18,341,145

£18,341,145

NET AGGREGATE NEW POWERS OF EXPENDITURE OR
LOAN (FOR THE PURPOSES OF WHICH THE COUNCIL
MAY RAISE MONEY BY BORROWING OR OTHERWISE).

For Council—

	£	£
For year ending 31st March 1938 - - -	751,760	
For six months ending 30th September 1938 - - -	4,400,960	
		5,152,720

For Loans—

For year ending 31st March 1938 - - -	—	
For six months ending 30th September 1938 - - -	351,000	
		351,000

£5,503,720

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